

		Plaintiff does not oppose Defendants' requests. In fact, Plaintiff's original moving memorandum of points and authorities concludes by requesting that the Court "retain the filing" of the SAC on 4/29/2025 "and/or to file the proposed Second Amended Complaint." (ROA #133, Mot. P&A at p. 7.) Indeed, on 11/13/2025, the Court already granted Defendants Lopez and Gallo's motion to strike Plaintiff's SAC filed on 4/29/2025 at ROA #102. (ROA #141.) Therefore, that SAC has already been stricken from the record, so there is no SAC currently on file in this case. Accordingly, in granting Plaintiff leave to file the SAC now, the Court ORDERS Plaintiff to separately file with the Court within 3 days of this ruling the proposed SAC attached to Plaintiff's counsel's declaration (ROA #133, Exh. B). The proposed SAC must be filed as a separate document to ensure it is properly indexed in the record. The Court also ORDERS Plaintiff to serve all defendants with the properly filed SAC within 30 days. Defendants' deadline to respond shall run from service of the properly filed SAC pursuant to this order. Plaintiff shall give notice.
108	Siguenza vs. 24 Carrots, LLC 2020-01160884	1. Case Management Conference 2. Motion to Strike MOTION OFF-CALENDAR PER STIPULATION; CMC CONTINUED TO 11/5/26 AT 9:30AM
109	Siguenza vs. 24 Carrots, LLC 2020-01168873	Case Management Conference CMC CONTINUED TO 11/5/26 AT 9:30AM

110	Hernandez vs. Resource Employment Solutions, LLC 2019-01084740	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Raymundo Hernandez and Adela Hernandez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of a fully executed Second Amended Joint Stipulation and Settlement Agreement and a further revised proposed order. This is a putative wage-and-hour class action and PAGA matter. On 7/19/2019, Plaintiff Raymundo Hernandez, individually and on behalf of other persons similarly situated, filed a class action complaint against Defendants Resource Employment Solutions, LLC (“RES”) and Houdini, Inc. (ROA #2.) The complaint alleged 5 causes of action for: 1. Failure to Pay Wages; 2. Failure to Provide Meal Periods; 3. Failure to Timely Pay Wages at Termination/Separation; 4. Failure to Provide Accurate Wage Statements; and 5. Violation of Unfair Business Practices Act – Bus. & Prof. Code §§ 17200, et seq On 9/23/2019, Plaintiff filed the first amended complaint (FAC) adding a cause of action for PAGA penalties. (ROA #13.) Defendant Houdini moved to compel arbitration. (ROA #37.) On 10/12/2021, after several pandemic-related continuances, the Court denied the motion. (ROA #142.) On 4/14/2022, Plaintiff filed the operative second amended complaint (SAC) adding Defendant Resource Employment Solutions II California, LLC (“RES II CA”) to the action and a cause of action for failure to provide paid rest periods. (ROA #177.) On 3/13/2023, the Court took notice that two other matters are related to this action: (1) <i>Villagomez v. Houdini, Inc.</i>, Case No. 2020-01140694; and (2) <i>Adela Hernandez v. Houdini, Inc.</i>, Case No. 2021-01212206. (ROA #198.) The <i>Villagomez</i> case settled separately, and on 8/29/2023, the Court entered an order dismissing that case without prejudice. (ROA #284 in 2020-01140694.) The <i>Adela Hernandez v. Houdini</i> case commenced the action against Houdini and Resource Employment Solutions II California,
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